

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

My parents received a phone call in which the caller sounded exactly like me and claimed that I had been detained after an accident and urgently needed money. The caller also sent them a short video that appeared to show me asking for help. My parents transferred ₹75,000 before contacting me and discovering that the voice and video had been artificially generated. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 14/Bharatiya Sakshya Adhiniyam (BSA), 2023

Prepared by :

NyaySahayak

Date :

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NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

The synthetic video and call-related digital records are electronic evidence.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving the video/message/call records.

Section 39 (2) — Opinion of Examiner of Electronic Evidence

Useful where the authenticity/manipulation of the synthetic media is disputed.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- Because the key issue includes whether media was artificially generated, expert electronic-evidence analysis can be important in addition to ordinary electronic-record proof.

✓ STRENGTHS & RIGHTS

- 1
- Original file/device/platform records can support forensic analysis.

✗ RISKS & OBLIGATIONS

- 1
- Do not treat the absence of a special 'deepfake' evidence section as a gap; general electronic-evidence and expert provisions can apply.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Preserve original files rather than recompressed copies where possible.

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